

225NWLC57456 225NWLC57456

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-07-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CZ%2C07%2F29%2F2026

Source SHA-256: 357ed54d4a82957aec5bc2b11239bd3cc73337f63be52532cbd006637d71a607

Case Number: 225NWLC57456 Hearing Date: July 29, 2026 Dept: Z

The Court finds Plaintiff has met the initial burden of showing that there is no defense to the causes of action by proving each element of the causes of action entitling Plaintiff to judgment.

On September 29, 2025, Plaintiff WELLS FARGO BANK filed this credit card collections action against Defendant MARIA T GAMINO. Plaintiff issued Defendant a credit card ("Account"), which the Defendant accepted. (Complaint at p. 4.) Defendant used the card to purchase goods, services, and/or cash advances. (Complaint at p. 4.) Defendant, in exchange for use of the card, agreed to Plaintiff for the principal, fees, and interest on the Account. (Complaint at p. 4.) Plaintiff alleges that Defendant failed to make payments owed on the Account. (Complaint at p. 4.) Plaintiff's Complaint alleges two causes of action: Breach of Written Contract and Breach of Implied Contract.

The Court has read and reviewed Plaintiff's Motion for Summary Judgment, Separate Statement of Undisputed Facts, Declaration of Plaintiff's Most Qualified Witness and attached exhibits. The Court finds that Plaintiff has met its initial burden of establishing all elements in support of the breach of contract claims. There is no triable issue of material fact.

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to the causes of action or a defense thereto as required by CCP 437c(p)(1).

The court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS the Motion for Summary Judgment. Judgment to enter in favor of Plaintiff for the principal sum of \$8,960.25, plus court costs of \$815.00, for a total judgment of \$9,775.25.